
Statement of the case.

liciously intended thereby to give a color of jurisdiction" for making the order that the name of the plaintiff "*be stricken from the roll of attorneys practicing in this court,*" whereby the plaintiff had been injured, and claimed damages, \$20,000.

The *second* count alleged that the defendant "wantonly, corruptly, arbitrarily, and oppressively intending to remove the plaintiff" from his office as an attorney-at-law, "caused to be entered *on the records of the Supreme Court of the District of Columbia, Criminal Court, March Term, 1867,*" the order in question, which was set forth at length, "*the same being an order removing the plaintiff from the office of an attorney-at-law in the said Supreme Court of the District of Columbia,*" whereby he was greatly disturbed in the enjoyment of his office and prevented from having the use and benefit thereof, in so full and ample a manner as he otherwise might and would have had.

The declaration also averred that the order was made without notice of any kind to the plaintiff, and was summary, that there was no complaint made by him to the justice, and that he did not accost him while the court was in session, nor immediately on the court's taking a recess and as the presiding judge was descending from the bench, as was stated in the order, nor did he, the plaintiff, at the time and place mentioned in the order, address the justice at all after the court had taken the recess, until the judge had passed some time in a private room, and had left the same and gone out of the court-house; and the great body of auditors, jurors, witnesses, clerks, and officers of the court, and the jury impanelled, and the prisoner on trial had left the court-house; and so the declaration proceeded to say, "*the said judge wilfully, maliciously, corruptly, and unlawfully fabricated the said order to give color and pretence to his jurisdiction in the premises.*"

By reason of which unlawful, wrongful, unjust, and oppressive acts of the defendant, the plaintiff alleged that he had been deprived of emoluments, and had lost sums of money which would otherwise have accrued to him from